KOR STRUCTURAL · 31206-01 LOT O OCEANFRONT SQUAMISH · PROFESSIONAL SERVICES AGREEMENT DATED 22 JULY 2026

Requested amendments

KOR Structural's requested changes to the Professional Services Agreement issued by Oceanfront Squamish Developments on 22 July 2026 (counsel's reference 113034.177516). Issued by KOR Structural, 28 October 2026.

Clause numbers refer to the agreement as issued. **Clauses not listed are accepted as issued.**

1 Preamble — name of the Owner

Replace "[Oceanfront Squamish ("Owner")" with:

> Oceanfront Squamish Developments Limited Partnership, by its general partner MSSH Oceanfront GP Inc. ("Owner")

2 1.15 — "Liabilities"

Delete. The term is used only in Section 9.1, which is replaced under item 6.

3 1.16 — "Owner Indemnified Parties"

Replace with:

> "Owner Indemnified Parties" means Owner and its officers, directors, employees, members, partners, and agents;

4 1.19 — "Project"

Replace with:

> "Project" means the Lot O development at Oceanfront Squamish, 37200–37400 Block of Innovation Avenue, Squamish, BC, comprising five three-storey rental apartment buildings over light industrial space, over one level of below-grade parking, together with a standalone daycare building, with a total gross buildable area of approximately 408,000 sq. ft., as shown on the Together Architecture Studio Inc. preliminary architectural drawings dated September 10, 2024;

5 5.1 — defined term

Replace "(the "Proposed Fees")" with "(the "Fees")", so that the defined term matches "Fees" as used in the rest of the Agreement.

6 Section 9 — replace 9.1 with the following 9.1 to 9.3

> 9.1. Except in the case of fault, negligent acts or omissions, or breach of contract by the Owner Indemnified Parties or non-parties to this Agreement, the Consultant agrees to indemnify and save harmless the Owner Indemnified Parties from and against any and all Claims caused by:
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> (a) the Consultant's failure to remit the appropriate amounts and file timely, correct, and accurate income taxes, GST, HST, Employer Health Tax returns, and other required amounts and filings with the appropriate government authorities to the extent applicable;
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> (b) a breach of any term or condition of this Agreement by the Consultant; and
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> (c) negligence by the Consultant in the Consultant's work or the performance of the Services.
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> For the purpose of this Section 9.1, the Consultant shall be deemed to include its agents, representatives, employees, shareholders, officers and directors. Where the Consultant is a corporation or partnership, the Owner Indemnified Parties will limit any claim they may have to the corporation or partnership, without liability on the part of any officer, director, member, employee, or agent of such corporation or partnership, provided that where the Consultant is a partnership, notwithstanding anything to the contrary, there shall be no limitation of claims against any partners comprising the Consultant. To the fullest extent permitted by law, in no event shall either the Owner Indemnified Parties or the Consultant be liable to the other for any incidental, indirect, punitive, or consequential damages, including, but not limited to, loss of revenue or profits, cost of capital, loss of use or opportunity, or cost of substitute facilities, goods or services arising out of, resulting from, or in any way relating to the Project.

9.2. In no event shall the indemnification provisions of Section 9.1 diminish, affect, impede, or impair, in any manner whatsoever, the benefits to which Owner may be entitled under any insurance policy required by this Agreement or otherwise.

9.3. To the maximum extent permitted under applicable law, the cumulative liability of the Consultant arising out of or in any way connected to this Agreement shall be limited as follows:

(a) with respect to Claims for which insurance is to be provided, the insurance limits required pursuant to this Agreement;

(b) with respect to Claims for which insurance is not required and/or does not apply pursuant to this Agreement, the lesser of two times the Fees and $500,000; and

(c) the existence of one or more claims under this Agreement will not increase the Consultant's liability in excess of the foregoing.

7 10.1 — drafter's note

The issued agreement carries the note "[NTD: Subject to review by Matthews' insurance consultants…]" in Section 10.1. Please confirm that the requirements in 10.1 are final and remove the note.

8 10.3 — waiver of subrogation and additional insured

Replace with:

10.3. All insurance required by this Agreement to be obtained by the Consultant shall be placed with insurers registered in and licensed to underwrite such insurance in Canada. The Comprehensive General Liability Insurance required by Section 10.1.1 shall name Owner and, if requested, its affiliates and their directors, officers, employees and agents as additional insureds with respect to the Consultant's fulfilment of its obligations under this Agreement, and shall include a waiver of subrogation rights which the insurer might otherwise have against Owner, its directors, officers, employees or agents. The additional insured and waiver of subrogation requirements do not apply to the Professional Liability (Errors and Omissions) Insurance or the Automobile Liability Insurance.

9 12.1 — ownership

Replace with:

12.1. The Consultant reserves all right, title and interest in its work product, including, but not limited to, Consultant Background IP, the Services IP and all Intellectual Property created in the performance of this Agreement, including the Services and the Deliverables.

10 12.2 — licence to Owner

Replace with:

12.2. All Consultant Background IP shall remain the sole property of the Consultant. Owner shall have an irrevocable, royalty-free licence to use the Deliverables in perpetuity for the Project. The Consultant shall ensure that its agreements with any Subconsultants contain a similar provision in order to ensure that Owner has such licence. The Consultant represents, warrants and covenants that this licence does not infringe on the rights of any third party. The Consultant may rescind the licence only if Owner has failed to pay the Fees relating to the Deliverables when due. If the Consultant elects to rescind the licence it must first provide written notice to Owner. Notwithstanding anything to the contrary contained in this Section 12.2, if (a) there is an unsettled dispute regarding Owner's unpaid invoice for the Services as it relates to the Deliverables; or (b) Owner responds to the Consultant's notice to rescind the licence within 30 business days with a notification of dispute, then the Consultant's right to revoke the licence will be delayed until the dispute is definitively settled or ruled upon by a court of competent jurisdiction.

11 12.3 — infringement indemnity

Delete.

12 17.16 — Entire Agreement

Delete the last two sentences, beginning "If the Consultant refers to, submits or otherwise uses terms and conditions …" and "Owner is not liable for any claims or liabilities of any kind …".

Notes for KOR (remove before sending). This is the core version: the Owner's name, the liability cap and indemnity, insurance 10.3 and intellectual property. Items 1–5, 6, 9, 11 and 12 are counsel's 26 October draft; item 8 is the executed Starlight wording; items 6 and 10 combine the two with the Starlight edits Rory asked for. It leaves out the six operational items of the full version (4.1 re-perform, 4.2 permits, 5.7 withholding, 14.1.2 and 14.4 termination, Article 15 stand-down). If this version is sent, those clauses are accepted as issued, and the sentence "Clauses not listed are accepted as issued" is KOR's statement to make.